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LEGISLATION - State may label foods that are not 'ultraprocessed' in grocery stores

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The Dodgers may have their eyes set on a three-peat this year, but one lawmaker from L.A. is hoping to claim a four-peat of his own.

For each of the last three years, from 2023 through 2025, Assemblymember Jesse Gabriel, D-Encino, has gotten bills signed into law to address harmful ingredients in food products, including efforts to keep them from being served in schools.

Now he's behind a new effort to promote healthier eating.

Assembly Bill 2244 would introduce a first-in-the-nation seal on food packaging to identify non- ultraprocessed foods sold in grocery stores. The idea is to help consumers more easily identify healthier food options.

The father of three young kids, Gabriel said parents want to know what they're feeding their children is healthful, but have a tough time figuring out if something is highly processed because packaging

labels list ingredients that are unfamiliar to the average consumer.

"Parents shouldn't need a Ph.D. in chemistry to try to understand what it is that they're feeding their kids," Gabriel said during a recent call with reporters.

His proposed bill would allow companies to voluntarily participate in a certification program to verify that their product is nonultraprocessed, using science-based standards. Once that's confirmed, the manufacturer would be allowed to place a "California Certified" seal on the front of their food packaging. The concept is modeled after the "USDA Organic" labeling system.

In addition, large grocery stores would be required to display these healthier food items more prominently so that busy shoppers in a rush can find the items more easily.

"Healthy foods shouldn't be hidden," said Gabriel, who called his bill a "common-sense approach," while still giving consumers the option to purchase products without the seal.

Foods considered ultraprocessed are high in saturated fat, added sugar or sodium and contain an additive such as flavor, color, emulsifier or a thickening agent. They've been chemically modified and often filled with harmful additives to enhance the taste, texture, appearance or shelf life of a product.

Experts have warned that ultra-processed foods, such as soda, can be addictive. Research has also linked these foods to cancer, cardiovascular disease, Type 2 diabetes, metabolic disorders, obesity and other health concerns.

According to the Environmental Working Group, a Washington, D.C.-based nonprofit that is co-sponsoring AB 2244, ultraprocessed foods account for more than two-thirds of a typical child's diet and over half of an adult's diet in the U.S.

Bernadette Del Chiaro, EWG's senior vice president for California, said in an interview that the desire for healthy foods is a non-partisan issue, and she expects AB 2244 to pass the state legislature.

From people who support the U.S. Health and Human Services Secretary Robert F. Kennedy Jr.'s "Make America Healthy Again" initiative to other advocates who want toxic ingredients gone to those who work in public health, Del Chiaro said, the desire for healthier foods spans the political spectrum.

"You bring those three forces together, and you get a lot of legislators nodding their heads and are happy to be part of this sort of pragmatic solution," she said.

And because it's modeled after the USDA's organic-labeling program, she believes that simple yet clear labels on packaging are effective with shoppers.

"We know it works. We know that there's a market for this," Del Chiaro said.

She and Gabriel are hoping other states will follow California with similar legislation.

Gabriel also said food manufacturers may be incentivized to change their ingredients to qualify for California's certified seal. That, in turn, could lead to a healthier product lining not just store shelves in California but in other states, even if those states don't adopt a certified-seal program.

Like Del Chiaro, Gabriel expressed optimism that his latest bill will have widespread legislative support.

In 2023, Gabriel championed the California Food Safety Act, which was signed into law, to ban four harmful additives — brominated vegetable oil, potassium bromate, propylparaben and Red 3 — from foods sold in the state, beginning Jan. 1, 2027.

The San Fernando Valley lawmaker followed up his 2023 legislation the next year with the California School Food Safety Act, which also became law. Starting Dec. 31, 2027, schools can't use products containing six synthetic food dyes — Blue 1, Blue 2, Green 3, Red 40, Yellow 5 and Yellow 6 — in their school meals.

Last year, Gabriel authored the Real Food, Healthy Kids Act, which provided the state with a legal definition for "ultra-processed foods." It also requires schools to stop serving some of the most harmful ultra-processed foods by 2035. The legislation was passed with support from 119 of California's 120 state lawmakers.

Gabriel said his latest proposed bill is simply expanding on efforts already made toward healthier eating.

"We have this really special moment of bipartisan alignment around this idea, which is fundamentally a commonsense idea: We don't want to feed our kids poison," he said.

AB 2244 is scheduled to be taken up by the Assembly Health Committee on April 14.

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